

24STCV26995 24STCV26995

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-27

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Case Number: 24STCV26995 Hearing Date: July 27, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 27, 2026 TRIAL DATE:

Not Set

CASE: J.R. v. Los Angeles Unified School

District

CASE NO.: 24STCV26995

PETITION

TO CONFIRM MINOR'S COMPROMISE

MOVING PARTY: Plaintiff J.R., by and through his guardian ad litem,

Marily R.

RESPONDING PARTY: None

CASE

HISTORY:

10/15/2024:

Complaint filed.

STATEMENT

OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is an action for personal injury. Plaintiff alleges that a student at his school was bullying him, and Defendant did not discipline, intervene or attempt to prevent any harassment. Plaintiff alleges that on February 9, 2024, Plaintiff was brutally attacked by the student. Plaintiff claims he suffered a concussion, stroke and traumatic brain injury as a result.

Plaintiff petitions to confirm the minor's compromise.

TENTATIVE RULING:

Plaintiff's Petition to Confirm Minor's Compromise is DENIED without prejudice.

Plaintiff to give notice, unless waived.

DISCUSSION:

The gross settlement value is \$200,000.

Petitioner requests approval of \$80,000 in attorney's fees to be taken from minor's settlement, an amount equal to 40%. The retainer's agreement attached indicates that the attorney's fee will be 40%. Medical expenses to be taken from the settlement are \$364. Costs to be taken from the settlement are \$46,317.23. (See Attach. 13b.) The net settlement amount is \$73,317.87, and it is to be invested in a deferred annuity.

The following deficiencies preclude granting of the petition at this time:

(1) The Medi-Cal lien must be attached.

(2) The Court has reviewed the declaration of counsel in support of its fee request. The Court finds that the declaration substantiates 30% in attorney fees.

(3) The proposed order is not completely filled out.

IT IS SO ORDERED.

Dated: July 27, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.